BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

NEW DELHI BENCH

Coram: SHRI R.VARADHARAJAN, MEMBER (JUDICIAL)

Dr. V.K.SUBBURAJ, MEMBER (TECHNICAL)

CA (CAA)-121(ND)/2018

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

In the matter of:

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Arrangements) Rules, 2016.

AND

In the matter of Scheme of Amalgamation

OF

MASTER-PIECE INVESTMENT PVT LTD

(APPLICANT/ TRANSFEROR COMPANY NO. 1)

AND

BUXOM FINCAP PVT LTD

(APPLICANT / TRANSFEREE COMPANY NO. 2)

AND

AVENIR FINVEST & LEASING LTD

(APPLICANT / TRANSFERIR COMPANY NO. 3)

WITH

SIGNATURE GLOBAL (INDIA) PVT LTD

(APPLICANT/ TRANSFEREE COMPANY)

MEMO OF PARTIES

MASTER-PIECE INVESTMENT PVT LTD
CIN: U74899DL1995PTC072512
C-550, S/F, GALI NO. 45,
MAHAVIR ENCLAVE, PART-3,
UTTAM NAGAR, SANNI BAZAR CHOWK,
NEW DELHI-110059

..APPLICANT NO.1 / TRANSFEROR COMPANY NO.1

AND

BUXOM FINCAP PVT LTD
CIN: U67120 DL1996 PTC076266
C-550, S/F, GALI NO. 45,
MAHAVIR ENCLAVE, PART-3,
UTTAM NAGAR, SANNI BAZAR CHOWK,
NEW DELHI-110059
...APPLICANT NO. 2 / TRANSFEROR COMPANY NO. 2

AND

AVENIR FINVEST & LEASING LTD.
CIN: U67190DL1996PLC076816
C-550, S/F, GALI NO. 45,
MAHAVIR ENCLAVE, PART-3,
UTTAM NAGAR, SANNI BAZAR CHOWK,
NEW DELHI-110059
...APPLICANT NO. 3 / TRANSFEROR COMPANY NO. 3

WITH

SIGNATURE GLOBAL (INDIA) PVT LTD
CIN: U70100DL2000PTC104787
UNIT NO. 1304 AT 13TH FLOOR,
DR. GOPAL DAS BHAWAN, 28,
BARAKHAMBA ROAD,
NEW DELHI-110001

..APPLICANT NO. 4 / TRANSFEREE COMPANY

For the Applicants: MR. NARESH KUMAR (ADVOCATE)

ORDER

Delivered on: 13.02.2019

1. This is an application which is filed by the petitioner companies herein, Master-Piece Investment Private Limited (for brevity "Transferor Company 1"), And Buxom Fincap Private Limited (for brevity "Transferor Company 2") And Avenir Finvest & Leasing Limited (for brevity "Transferor Company 3") with Signatureglobal (India) Private Limited (for brevity "Transferee Company") jointly under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act,

2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement by way of Amalgamation (hereinafter referred to as the "SCHEME") proposed between the applicants. The said Scheme is also annexed as Annexure "A-5" to the application. The applicants above named have preferred the instant application in effect for the following purpose as evident inter alia from the reliefs sought for in the Application, namely:

a. Dispense with the requirement of convening meetings of Equity Shareholders of the Transferor Companies No.1 to 3 and the Transferee Company.
b. Dispense with the requirement of convening meetings of Secured Creditors Including Secured NCD holders of the Transferee Company, None of the Transferor Companies No. 1 to 3 does not have any Secured Creditor.
c. Dispense with the requirement of convening meetings of Un-secured Creditors of the Transferor Company No. 1 & 2 and the Transferee Company. The Transferor Company No. 3 does not have any Unsecured Creditor.
d. Direct service of notice of the present Application on (a) the Central Government through the office of the Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi; (b) the Registrar of Companies, Delhi and Haryana, New Delhi; (c) The official Liquidator, Ministry of Corporate Affairs, New Delhi; and (d) the Income Tax Department; and
e. Pass such other/ further order(s) as this Hon'ble Tribunal may deem fit and proper.

2. An affidavit in support of the application sworn for and on behalf of the companies by the following persons being the Directors of the respective companies along with the application are as follows;

S.NO.	COMPANY	DIRECTORS
1.	Transferor Company 1	Shri Sanjay Shukla
2.	Transferor Company 2	Shri Devender Aggarwal
3.	Transferor Company 3	Shri Devender Aggarwal
5.	Transferee Company	Shri Ravi Aggarwal

3. The applicant has furnished the details of the Shareholders, Secured Creditors and Unsecured Creditors in the Scheme marked as Annexure " A-5 ", of the applicant companies as on date which are as follows;

S. NO.	Name of the Company	No. of Share Holders	No. of Secured Creditors	No. of Unsecured Creditors
1.	Master-Piece Investment Private Limited (Transferor Company No. 1)	2	Nil	1
2.	Buxom Fincap Private Limited (Transferor Company No.2)	2	Nil	2
3.	Avenir Finvest & Leasing Limited (Transferor Company No.3)	7	Nil	Nil

4.	Signatureglobal (India) Private Limited (Transferee Company)	24	20	132

The applicant contends that all the equity shareholders and the Unsecured Creditors of all the Applicant Companies 1 and 2 have given their consent for the scheme and necessary affidavits have been filed and seeks dispensation from convening and conducting the meetings of the shareholders and the Unsecured Creditors. The Applicant Company No. 3 , it is represented has 7 equity shareholders and out of which 5 of them have given their consents by way of affidavits amounting to 99.99%. In relation to the Transferee Company there are 24 Equity Shareholders and all of them have given their consents by way of affidavits and out of 132 Unsecured Creditors 34 have given its consents by way of affidavits amounting to 93.35% .The applicant pleads that there is no need to conduct meeting of the Secure Creditors as all the Transferor companies have Nil Secured Creditors. The transferee Company has 20 Secured Creditors out of which 4 of them have given their consents by way of affidavits amounting to 95.30 % in value.

4. In relation to the territorial jurisdiction, Ld. Counsel for the applicant companies submit that since the registered office of the respective companies fall within the purview of Registrar of Companies, NCT, New Delhi, this Tribunal has the necessary territorial jurisdiction to entertain the joint application.

5. We have perused the joint application and the connected documents / papers filed therewith including the Scheme of Arrangement contemplated between the Applicant companies.

6. Perusal of the application filed by the applicants indicate the details of the capital structure of the applicant companies which are given as follows;

S. NO.	Name of the applicant companies	Date of incorporation under the companies Act 1956	Authorised Share Capital	The issued, paid up and subscribed share capital	CIN NO.
1.	Master-Piece Investment Private Limited (Transferor Company No. 1)	18.09.1995	Rs.50,00,000/- divided into 5,00,000 Equity Shares of Rs. 10/- Each.	Rs. 49,85,200/- divided into 4,98,520 Equity Shares of Rs. 10/- each.	U74899DL1995PTC072512
2.	Buxom Fincap Private Limited	13.02.1996	Rs. 50,00,000/- divided into 5,00,000 Equity	Rs. 43,26,200/- divided into 4,32,620 Equity	U67120DL1996

	(Transferor Company No.2)		Shares of Rs. 10/- each.	Shares of Rs. 10/- each.	PTC076266
3.	Avenir Finvest & Leasing Limited (Transferor Company No.3)	01.03.1996	Rs. 14,00,00,000/- divided into 1,40,000 Equity Shares of Rs. 10/- each.	Rs. 13,43,400/- divided into 1,34,340 Equity shares of Rs. 10/- each.	U67190DL1996PLC076816
4.	Signatureglobal (India) Private Limited (Transferee Company)	28.03.2000	Rs. 5,70,00,000 /- divided into 57,00,000 Equity Shares of Rs. 10/- each.	Rs. 5,68,79,400/- divided into 56,87,940 Equity Shares of Rs. 10/- each.	U70100DL2000PTC104787

7. All the applicants have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses as well as their last available Audited Annual Accounts for the year ended 31.03.2017 and Unaudited Provisional Balance Sheet as on 31.12.2017.

8. The Board of Directors of the Applicant companies vide meeting held on 02.04.2018 and 01.06.2018, have unanimously approved the proposed Scheme of Amalgamation as contemplated above and copies of resolutions passed thereon have been placed on record by the companies.

9. The appointed date as specified in the Scheme is 1st April, 2018 subject to the directions of this Tribunal.

10. The Applicant companies have stated in the application that no investigation proceedings are pending against them under Sections 210 or any other applicable provisions of the Companies Act, 2013.

11. That the Applicant Companies have complied with the proviso to Section 230 (7) and Section 232 (3) by filing the certificate of the Company's Auditor in relation to compliance with the Accounting Standards under section 133 of the Companies Act, 2013.

12. Taking into consideration the application filed jointly by the Applicant Companies and the documents filed therewith, this Tribunal propose to issue the following directions with respect to calling, convening and holding of the meetings of the Equity Shareholders, Secured and Unsecured Creditors, or dispensing with the same as well as issue of notices including by way of paper publication as follows:-

A) In relation to the Transferor Company No.1 :

(i) With respect to Equity shareholders:

Since it is represented by the Transferor Company No. 1 there are 2 Equity shareholders in the Company whose consents have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

(ii) With respect to Secured Creditor:

Since it is represented by the Transferor Company No. 1 that there is no Secured Creditor in the Company, the necessity of convening a meeting does not arise.

(iii) With respect to Unsecured Creditors:

Since it is represented by the Transferor Company No.1 that there is only one Unsecured Creditor in the Company, whose consent has been obtained and is placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

B) In relation to the Transferor Company No.2 :

(i) With respect to Equity shareholders:

Since it is represented by the Transferor Company No. 1 there are 2 Equity shareholders in the Company whose consents have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

(ii) With respect to Secured Creditor:

Since it is represented by the Transferor Company no.2 that there is nil Secured Creditor in the Company, the necessity of convening a meeting does not arise.

(iii) With respect to Unsecured Creditors:

Since it is represented by the Transferor Company no. 2 that there are two Unsecured Creditors in the Company, whose consent have been obtained and is placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

C) In relation to the Transferor Company No.3 :

(i) With respect to Equity shareholders:

Since it is represented by the Transferor Company No. 3 there are 7 Equity shareholders in the Company out of which 5 Equity Shareholders have given their consents by way of affidavit amounting to 99.99% and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

(ii) With respect to Secured Creditor:

Since it is represented by the Transferor Company no. 3 that there is no Secured Creditor in the Company, the necessity of convening a meeting does not arise.

(iii) With respect to Unsecured Creditors:

Since it is represented by the Transferor Company no. 3 that there is no Un-Secured Creditor in the Company, the necessity of convening a meeting does not arise.

D) In relation to Transferee Company:

(i) With respect to Equity shareholders:

Since it is represented by the Transferee Company there are 24 Equity shareholders in the Company and all of them have given their consents by way of affidavit which are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

(ii) With respect to Secured Creditor:

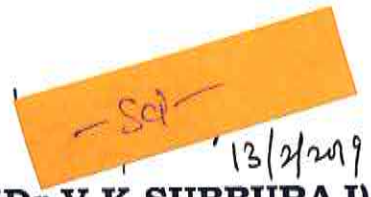
Since it is represented by the Transferee Company there are 20 Secured Creditors in the Company out of which 4 Secured Creditors have given their consents by way of affidavit amounting to 95.30% and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

(iii) With respect to Unsecured Creditors:

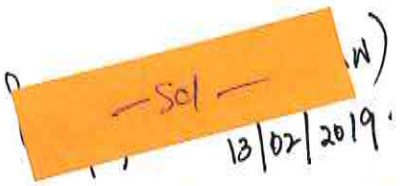
Since it is represented by the Transferee Company there are 132 Secured Creditors in the Company out of which 34 Secured

Creditors have given their consents by way of affidavit amounting to 93.93% and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, the approval of the scheme is dispensed with.

The application stands allowed on the aforesaid terms. Let the petition for approval of the scheme of Amalgamation be filed within a period of seven days from the date of this order.



(Dr.V.K.SUBBURAJ)
MEMBER (TECHNICAL)



(R.VARADHARAJAN)
MEMBER (JUDICIAL)

U.D Mehta/K